

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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QUENTIN COOLEY and BRANDEN THOMAS,

**SUMMONS**

Plaintiffs,

Index No.:

-against-

The Basis of Venue is:  
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER  
SUAREZ, Shield No. 5841, and NYPD POLICE  
OFFICERS JOHN/JANE DOES NUMBERS 1-10,

Plaintiff designates Bronx  
County as the place of trial.

Defendants.

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**To the above named Defendants:**

**You are hereby summoned** to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
March 4, 2021

Yours, etc.

*Caitlin Robin*

\_\_\_\_\_  
CAITLIN ROBIN, ESQ.  
CAITLIN ROBIN AND ASSOCIATES PLLC  
Attorney for Plaintiffs  
30 Broad Street Suite 702  
New York, New York 10004  
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD OFFICER SUAREZ, Shield No. 5841, PSA-7 Precinct; 737 Melrose Avenue,  
Bronx, NY 10455

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

----- X

QUENTIN COOLEY and BRANDEN THOMAS,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER  
SUAREZ, Shield No. 5841, and NYPD POLICE  
OFFICERS JOHN/JANE DOES NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiffs QUENTIN COOLEY and BRANDEN THOMAS, by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint herein, allege upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 23, 2020, at approximately 3:00pm, Plaintiffs QUENTIN COOLEY and BRANDEN THOMAS, while lawfully in the vicinity of Courtlandt Avenue and 158th Street in Bronx, New York, were subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant NYPD Officers, including fellow NYPD officers and sergeants. In addition, Plaintiffs were subjected to unnecessary force, assault, and battery, and have thus suffered emotional and psychological distress as result of the above-mentioned violations. Plaintiffs were then unlawfully imprisoned at the PSA-7 Precinct and for approximately 8 hours until plaintiffs were released on their own recognizance. Plaintiffs were denied the right to due process and a fair trial until the disorderly conduct charges against Plaintiffs were dismissed and sealed, after the Bronx County District Attorney declined to prosecute as the plaintiffs committed no crime. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and denied Plaintiffs the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

## **PARTIES**

2. Plaintiff QUENTIN COOLEY (“Mr. Cooley”) is a resident of the State of New York.

3. Plaintiff BRANDEN THOMAS (“Mr. Thomas”) is a resident of the State of New York.

4. NYPD POLICE OFFICER SUAREZ, Shield No. 5841, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

5. NYPD POLICE OFFICER SUAREZ, Shield No. 5841, was at all times herein assigned to the PSA-7 Precinct.

6. NYPD POLICE OFFICER SUAREZ, Shield No. 5841, is being sued in his individual and official capacities.

7. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10, are and were at all times relevant herein, officers, employees, and agents of the New York City Police Department.

8. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10, were at all times relevant herein, assigned to the PSA-7 Precinct.

9. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10, are being sued in their individual and official capacities.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

13. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on February 10, 2021.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

17. On February 23, 2020, at approximately 3:00pm, Plaintiffs were lawfully present in the vicinity of Courtlandt Avenue and 158th Street in Bronx, New York, when the defendant police officers unlawfully stopped, frisked, questioned, assaulted, battered, and falsely arrested Plaintiffs without probable cause or legal justification.

18. Plaintiffs had spent the day catching up at Mr. Thomas' house, and were headed to visit a cousin at his home.

19. Mr. Thomas was driving Mr. Cooley in his vehicle, and they had stopped briefly outside a deli so that Mr. Cooley could run in and grab a beverage.

20. Almost immediately after they continued driving, plaintiffs observed an unmarked police vehicle following closely behind them, and when defendant officers announced over their megaphone to pull over, plaintiffs obeyed.

21. Approximately six police officers approached the vehicle on either side, and requested license and registration from Mr. Thomas.

22. Mr. Thomas's license and registration were both valid.

23. When Mr. Thomas handed over the requested documents, defendant officers immediately instructed the plaintiffs to exit their vehicle, without any explanation or even running a check for their information.

24. Upon exiting the vehicle, the two men were subjected to an unlawful pat-down search by defendant officers.

25. At no point during the unlawful search did the defendant officers find any illegal contraband on the plaintiffs' person, nor in any location that was under plaintiffs' possession, custody, or control.

26. When Mr. Cooley verbally objected during a rather invasive portion of the search, defendant officers pulled his hoodie over his face and slammed his face down onto the vehicle.

27. Mr. Thomas was instructed at this time that he was not to look at what was happening to his friend Mr. Cooley.

28. It was at this time that Defendant Officers began to arrest the plaintiffs, cuffing them tightly with metal handcuffs.

29. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the defendant officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

30. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

31. At no point did Plaintiffs resist arrest.

32. After being placed in handcuffs, Mr. Cooley was picked up and thrown to the ground where he was repeatedly kicked by defendant officers.

33. Defendants then placed Plaintiffs in an NYPD vehicle and transported them to the PSA-7 Precinct police station against their will and without explanation as to why they were being arrested.

34. Once at the PSA-7 Precinct, plaintiffs were unlawfully placed in a holding cell, injured and bleeding from extremely tight handcuffs and violence inflicted by defendant officers.

35. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that Plaintiffs committed a crime.

36. Specifically, the defendant police officers falsely stated to the District Attorney's Office that the plaintiffs were engaged in Disorderly Conduct.

37. On February 23, 2020, after approximately 6 hours in unlawful custody, Plaintiffs were released on their own recognizance.

38. Thereafter, the Bronx County District Attorney declined to prosecute and all criminal charges against Plaintiffs were dismissed and sealed in their entirety.

39. After the incident, Mr. Thomas sought professional counseling with a psychiatrist.

40. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting and imprisoning, and denying Plaintiffs the right to due process and a fair trial.

41. The unlawful, search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of Plaintiffs' right to a fair trial by the individually named defendants caused Plaintiffs to sustain physical, psychological and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights**

42. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

44. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

### **SECOND CAUSE OF ACTION**

#### **False Arrest and False Imprisonment**

45. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs

and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

47. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

50. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

### **THIRD CAUSE OF ACTION**

#### **Unlawful Stop, Question, and Frisk**

51. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

53. The conduct of defendants in stopping, frisking, and searching Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

54. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

### **FOURTH CAUSE OF ACTION**

### **Unlawful Search**

57. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

59. Defendants lacked probable cause to search Plaintiffs.

60. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

### **FIFTH CAUSE OF ACTION**

#### **Violation of Plaintiffs' Fifth and Fourteenth Amendment Rights**

##### **Denial of Right to Fair Trial/Due Process**

64. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein

65. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

66. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

67. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

68. In withholding/creating false evidence against Plaintiffs QUENTIN COOLEY and BRANDEN THOMAS, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

69. As a result of the foregoing, Plaintiffs QUENTIN COOLEY and BRANDEN THOMAS sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

## **SIXTH CAUSE OF ACTION**

### **Negligence**

73. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants owed a duty of care to Plaintiffs.

75. To the extent defendants claim that the injuries to Plaintiffs by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by slamming them into the vehicle and the ground, and tightly handcuffing them, among other things.

76. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

77. All of the foregoing occurred without any fault or provocation by Plaintiffs.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

## **SEVENTH CAUSE OF ACTION**

### **Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights**

81. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The use of excessive force by defendants by, amongst other things, by bashing their heads onto the police vehicle, throwing them to the ground, and tightly cuffing them, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

## **EIGHTH CAUSE OF ACTION**

### **Assault**

84. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiffs, that such acts caused apprehension of such contact in the Plaintiffs.

86. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

## **NINTH CAUSE OF ACTION**

### **Battery**

90. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiffs, when they, in a hostile and/or offensive manner shoved Plaintiffs, threw them to the ground, and repeatedly kicked them, with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs and caused such battery.

92. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

## **TENTH CAUSE OF ACTION**

### **Deliberate Indifference to Medical Needs**

96. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. Despite being aware that Plaintiffs were suffering through severe pain in their wrists, as well as neck and back pain, and required treatment from medical professionals, defendants delayed Plaintiffs' medical treatment and refused to administer and/or properly procure immediate and adequate medical attention.

98. This delay in medical treatment for Plaintiffs' injuries resulted in permanent pain and injury that could have been prevented had Plaintiffs received treatment in a timely manner.

99. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Department of Corrections, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

## **ELEVENTH CAUSE OF ACTION**

### **Negligent Infliction of Emotional Distress**

103. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs, QUENTIN COOLEY and BRANDEN THOMAS. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

105. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

## **TWELFTH CAUSE OF ACTION**

### **Negligent Hiring, Retention, Training and Supervision**

109. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

111. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

## **THIRTEENTH CAUSE OF ACTION**

### **Failure to Intervene**

112. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

113. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

114. Defendants failed to intervene to prevent the unlawful conduct described herein.

115. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to other physical constraints.

116. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

117. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

118. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

119. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

### **JURY DEMAND**

120. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

### **PRAYER FOR RELIEF**

**WHEREFORE**, Plaintiffs QUENTIN COOLEY and BRANDEN THOMAS demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
March 4, 2021

By: Caitlin Robin  
CAITLIN ROBIN, ESQ.  
CAITLIN ROBIN AND ASSOCIATES PLLC  
Attorney for Plaintiffs  
30 Broad Street Suite 702  
New York, New York 10004  
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER SUAREZ, PSA-7 Precinct; 737 Melrose Avenue, Bronx, NY 10455

**ATTORNEY'S VERIFICATION**

**CAITLIN ROBIN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York  
March 4, 2021

*Caaitlin Robin*  
\_\_\_\_\_  
CAITLIN ROBIN